CHECKMAYBE

Can I Use This?

AI Content Commercial Use Toolkit

A practical decision guide for creators using AI-generated content in their commercial work.

01	02	03	04
WHAT YOU USED	WHAT YOU CREATED	WHAT YOU'RE SELLING	VERIFY, THEN PUBLISH

> *"Not legal advice. A practical way to know what to check next."*

HOW TO READ THE SIGNALS

✓ GREEN-LEANING	Official terms generally support it, under stated conditions
! AMBER	Depends on conditions you must check
× RED	Prohibited or high concern — stop
? VERIFY	Not yet checked against official text

First-pass signals, not permission. Always confirm the current official terms.

WHAT'S INSIDE

- 5-CHECK FRAMEWORK
- 15 SCENARIOS
- PLATFORM TERMS SNAPSHOTS
- CHECKLIST + WORKSHEETS

VERSION 1.3

FOR EDUCATIONAL AND INFORMATIONAL PURPOSES ONLY
DOES NOT CONSTITUTE LEGAL ADVICE

Before you start

“Can I use AI content commercially?” is not one simple question. The same AI-generated output can raise different considerations depending on where it ends up.

COMMERCIAL USE VS. COPYRIGHT OWNERSHIP

A platform can contractually let you use an output commercially while the output itself remains unprotected by copyright — and a third party’s rights in your input can create risk regardless of what the platform’s terms say about your output.

- Social media content
- A logo
- Client work
- A resold asset
- An ebook
- Print-on-demand merchandise
- A digital product
- Merchandise at scale

KEEP THIS DISTINCTION IN MIND

Commercial use is not the same question as copyright ownership.

Important disclaimer

EDUCATIONAL & INFORMATIONAL PURPOSES ONLY

This toolkit is for educational and informational purposes only and does not constitute legal advice. It does not guarantee commercial-use rights, copyright ownership, or compliance with any platform's terms.

- AI platform terms can change — some changes take effect as soon as they are posted, and continued use may count as acceptance.
- Laws differ between jurisdictions, and AI copyright law continues to develop.
- You are responsible for verifying the current official terms before you rely on them.
- High-value or high-risk commercial uses may warrant qualified professional advice.
- Nothing in this toolkit should be read as a guarantee that any specific use is permitted.

READ THIS FIRST

This is a decision aid, not a verdict.

The 5-Check Framework

Move around the wheel before you publish or sell anything AI-assisted.

1. **TOOL**
   What tool did you use?

2. **OUTPUT**
   What did you create?

3. **INPUT**
   What went into it?

4. **USE**
   What are you doing with it, and where?

5. **VERIFY**
   What needs verification?

Quick decision map

1. **AI USE**
   Did you create this using AI?

2. **SERVICE AND PLAN**
   Which AI service and plan?

3. **UPLOADED MATERIAL**
   Did you upload third-party material?

4. **OUTPUT TYPE**
   What type of output was generated?

5. **INTENDED USE**
   How will the output be used?

6. **PROVIDER AND MARKETPLACE TERMS**
   Do the provider’s and marketplace’s current terms permit the intended use?

7. **THIRD-PARTY RIGHTS**
   Are third-party rights involved?

8. **VERIFY**
   Verify before publishing or selling.

✓ LOWER CONCERN

Lower concern for this use — still run the 5 checks before you publish or sell.

! CHECK FIRST

Check the AI tool’s terms, your inputs and your marketplace’s rules before you sell.

× HIGHER CONCERN

Slow down, check further, or get a second opinion before you sell.

× PROFESSIONAL REVIEW RECOMMENDED

Stop and review; qualified professional advice may be warranted.

× NOT ALLOWED ON ETSY

Not allowed under Etsy’s current AI rules (October 2026) — do not list it on Etsy.

? VERIFY BEFORE RELYING

Not rechecked against official text this round — verify the current terms yourself.

Five questions that are not the same

Creators often collapse these into one question. Don’t — each has a different answer, from a different source.

QUESTION 1

Does the AI provider permit this commercial use?

A contractual question. Answered by the platform’s terms of service and usage policy.

QUESTION 2

What contractual rights does the provider grant in output?

What contractual rights does the provider grant regarding the output? Also contractual — but distinct from permission to use. This is about who is assigned what.

QUESTION 3

Is the output copyrightable in the relevant jurisdiction?

Is the output eligible for copyright protection in the relevant jurisdiction? A legal question about copyright law, not the platform’s terms. The U.S. Copyright Office’s position: purely AI-generated material, without sufficient human authorship, is not protected.

QUESTION 4

Could using the output infringe third-party rights?

A risk question, independent of the platform’s terms. Depends on your input and the output’s resemblance to existing work.

QUESTION 5

Does the marketplace where you sell allow it, and what must you disclose? A platform-policy question, independent of the AI tool’s terms. Etsy, for example, requires AI disclosure in the listing description.

OpenAI — ChatGPT & API

✓ SOURCE-CHECKED

PRODUCT	ChatGPT (consumer), OpenAI API (developer/business)
PLAN DIFFERENCES	The API and ChatGPT Business/Enterprise fall under OpenAI's Business Terms; this snapshot covers the US consumer Terms of Use. EEA, Switzerland and UK residents have separate terms.
COMMERCIAL-USE LANGUAGE	Terms of Use assign OpenAI's rights in Output to the user; no blanket statement that every downstream commercial use is pre-approved.
OUTPUT-RIGHTS LANGUAGE	"As between you and OpenAI, and to the extent permitted by applicable law, you (a) retain your ownership rights in Input and (b) own the Output. We hereby assign to you all our right, title, and interest, if any, in and to Output."
RESTRICTIONS	May not represent Output as human-generated when it was not; may not use Output to develop competing models; may not automatically or programmatically extract data or Output.
THIRD-PARTY RIGHTS WARNING	You are responsible for Content (Input and Output) and represent that you have all rights needed to provide your Input. If you use the Services as a business, you also indemnify OpenAI against related third-party claims.
OFFICIAL SOURCE	openai.com/policies/terms-of-use (US; Effective January 1, 2026). EEA/Switzerland/UK residents: see OpenAI's separate terms for those regions. Other countries: check which version applies to you.
STATUS	Checked against the official US Terms of Use on 25 September 2026

Adobe Firefly

? VERIFY BEFORE RELYING

PRODUCT	Firefly (web, and embedded in Photoshop, Illustrator, Express)
PLAN DIFFERENCES	Non-beta generative features: commercial use generally permitted. Beta-labelled features: personal use only unless stated otherwise.
COMMERCIAL-USE LANGUAGE	Adobe support documentation states outputs from non-beta generative features may be used in commercial projects.
OUTPUT-RIGHTS LANGUAGE	Guidelines assign no explicit output-ownership clause in the text reviewed; commercial permission is described at the feature/product level, not as a blanket IP grant.
RESTRICTIONS	Must not generate content that infringes third-party copyright, trademark, or privacy rights; must not remove Content Credentials.
THIRD-PARTY RIGHTS WARNING	Uploading a reference image containing someone else’s copyrighted content for generation is explicitly listed as prohibited.
OFFICIAL SOURCE	adobe.com/legal/licenses-terms/adobe-gen-ai-user-guidelines.html (Last updated May 15, 2026)
STATUS	VERIFY BEFORE RELYING — last reviewed September 2026

Midjourney

? VERIFY BEFORE RELYING

PRODUCT	Midjourney (Discord and web app)
PLAN DIFFERENCES	Free/Trial: no ownership of Assets. Paid plans (Basic/Standard/Pro/Mega): you own Assets. Companies over US$1M annual revenue must be on Pro or Mega to own Assets.
COMMERCIAL-USE LANGUAGE	Ownership is the mechanism for commercial use here — if you don’t own the Asset, you don’t have a basis to sell it.
OUTPUT-RIGHTS LANGUAGE	“You own all Assets You create with the Services to the fullest extent possible under applicable law” — subject to the revenue-based plan exception.
RESTRICTIONS	You also grant Midjourney a broad perpetual license to reproduce and distribute your Content; default settings make your creations publicly viewable and remixable by others.
THIRD-PARTY RIGHTS WARNING	Upscaling someone else’s image does not transfer ownership of that image to you.
OFFICIAL SOURCE	docs.midjourney.com/docs/terms-of-service (Version effective May 27, 2026)
STATUS	VERIFY BEFORE RELYING — last reviewed September 2026

Google Gemini

? PENDING FULL REVIEW

PRODUCT	Gemini app (consumer), Gemini API / Vertex AI (developer)
PLAN DIFFERENCES	General Google Terms of Service now cover Gemini (the standalone Generative AI Additional Terms folded into the main ToS in May 2024, except for signed business partners).
COMMERCIAL-USE LANGUAGE	No single clearly-worded clause dedicated to Gemini output commercial rights was located in the general Google Terms of Service during this research pass.
OUTPUT-RIGHTS LANGUAGE	General Google ToS: “Your content remains yours” for content you submit; API/Enterprise tiers reportedly carry stronger, separately-documented commercial terms.
RESTRICTIONS	Generative AI Prohibited Use Policy separately restricts harmful, deceptive, or high-stakes uses (e.g. medical, legal contexts) without human oversight.
THIRD-PARTY RIGHTS WARNING	Verification required — confirm current Gemini API / Workspace-specific commercial terms directly before publishing a claim.
OFFICIAL SOURCE	policies.google.com/terms · policies.google.com/terms/generative-ai/use-policy
STATUS	PENDING FULL REVIEW — last reviewed September 2026

Anthropic Claude

✓ SOURCE-CHECKED

PRODUCT	Claude.ai / Claude Pro (consumer), Claude API / Console (commercial)
PLAN DIFFERENCES	Consumer Terms cover Claude.ai and Claude Pro. Anthropic API keys and Console use fall under the separate Commercial Terms of Service — check that document directly for its ownership and indemnity terms.
COMMERCIAL-USE LANGUAGE	Consumer Terms contain no explicit commercial-use clause. Subject to your compliance with the Terms, Anthropic assigns you its rights, if any, in Outputs. Evaluation access is for personal, non-commercial use only.
OUTPUT-RIGHTS LANGUAGE	“As between you and Anthropic, and to the extent permitted by applicable law, you retain any right, title, and interest that you have in the Inputs you submit. Subject to your compliance with our Terms, we assign to you all of our right, title, and interest—if any—in Outputs.”
RESTRICTIONS	Governed by Anthropic’s Acceptable Use Policy (Usage Policy) and Supported Regions Policy. Data use: Materials (Inputs and Outputs) may be used for training unless you opt out — and even then if you give Feedback (e.g. thumbs up/down) or they are flagged for safety review.
THIRD-PARTY RIGHTS WARNING	You are responsible for all Inputs and must have the rights to any material you upload. You also agree to indemnify Anthropic, including for products you offer using the Services.
OFFICIAL SOURCE	anthropic.com/legal/consumer-terms (Effective October 8, 2025)
STATUS	Checked against the official Consumer Terms on 25 September 2026

Etsy’s October 2026 AI rules

Etsy updated its AI rules and Listing Image Requirements on 22 October 2026. A summary of the official pages; read them before you list.

DISCLOSE

Say when an item is made with AI

! REQUIRED

AI-made items are still allowed when you play a clear creative role, such as your own original prompts. Disclose in the listing description when an item is created with the use of AI. Don’t present AI work as handmade or entirely your own creation.

SOURCE Etsy’s Stance on AI Creations

NOT ALLOWED

Three things you can’t list

× NOT ALLOWED ON ETSY

Bot-generated listings without individual human input. AI prompt bundles sold without the finished artwork. AI-generated functional instructions: content meant to teach a buyer how to make, build, use or complete something, such as patterns, recipes, project plans, manuals and instructional e-books.

SOURCE Etsy’s Stance on AI Creations

LISTING IMAGES

Digital downloads need a real preview

Most listings need one unedited photo of the actual item. Digital downloads should show a visual preview or excerpt of what buyers receive. Only items with no visual element, like audio files, may use representative imagery, including AI images, if it doesn’t mislead.

SOURCE Etsy Listing Image Requirements

IF IT GOES WRONG

Refunds and removal

If a buyer opens a case because the item is materially different from the listing, you may be responsible for the refund. Etsy may remove misleading listings; repeated violations can lead to shop removal. New AI-image reports won’t trigger immediate enforcement at first.

SOURCE Important updates to AI use on Etsy

ALSO NOTE

Etsy points US sellers to California SB 1050 (from 1 January 2027): images or videos that prominently feature an AI-generated synthetic performer may need a clear disclosure.

Etsy’s new Terms: your content and AI training

Etsy’s new Terms of Use take effect on 16 December 2026 (Privacy Policies updated 26 October 2026). What they say about AI training.

WHAT YOU AGREE TO

Your listings can be used to train AI

! FROM 16 DEC 2026

The license you give Etsy on Your Content (shop names, profile pictures, listing photos and descriptions, reviews, comments, videos, usernames) is irrevocable and perpetual, and lets Etsy and its third party partners and vendors use it to develop, train, test and improve AI.

SOURCE Etsy Terms of Use, section 5

EEA AND UK

A right to object, not a switch

AI training is listed under Etsy’s legitimate interests. In the EEA, UK and other countries you can object to, and seek restriction of, this processing; Etsy can continue with compelling legitimate grounds. Contacts include dpo@etsy.com.

SOURCE Etsy Privacy Policy, sections 2 and 7

US SELLERS

No AI training opt-out listed

× NOT IN THE LIST

The US Regional Privacy Policy lists opt-outs for targeted advertising and for “sales” of personal data. AI training is not one of them, and the page doesn’t mention AI.

SOURCE Etsy US Regional Privacy Policy

DON’T MIX THESE UP

Arbitration opt-out and closing your shop

The 30-day opt-out in section 11.G is for arbitration, for new users only. Closing your account “will not affect the availability of some of Your Content” you posted before (section 7).

SOURCE Etsy Terms of Use, sections 7 and 11.G

ALSO NEW

Section 6.E: nobody else may use content from Etsy to train AI without Etsy’s express permission. Decide what you upload with the license in mind.

AI image in an ebook

! REAL-WORLD SCENARIO ! CHECK FIRST

THE SITUATION. You generated illustrations with an AI image tool and want to include them in an ebook you plan to sell.

WHAT TO CHECK

- [ ] Platform terms
- [ ] Input rights
- [ ] Output rights
- [ ] Third-party rights
- [ ] Intended commercial use

WATCH OUT FOR

> Beta-labelled features on some platforms restrict commercial use even when the main product allows it.

> Prompting with a named living artist’s style increases the odds of a resemblance dispute.

> Etsy, for example, requires sellers to disclose AI use within the listing description.

BEFORE YOU PUBLISH

1. Confirm the AI tool’s current terms for your plan and your marketplace’s AI-disclosure rule.
2. Check whether any prompt referenced a real artist, brand, or copyrighted character by name.
3. Record the platform, plan, and generation date for this project (Worksheet 1).

AI image on a T-shirt

REAL-WORLD SCENARIO

HIGHER CONCERN

THE SITUATION. You want to print an AI-generated design on shirts and sell them.

WHAT TO CHECK

- [ ] Platform terms
- [ ] Input rights
- [ ] Output rights
- [ ] Third-party rights
- [ ] Intended commercial use

WATCH OUT FOR

> Merchandise at scale increases exposure if the output resembles existing IP.

> Marketplaces and POD services can add their own rules. On Etsy, disclose AI use and the production partner, including where it ships from.

> AI-generated logos or wordmarks can unintentionally mimic real brands.

BEFORE YOU PUBLISH

1. Check the AI tool’s terms, your POD service’s content policy, and your marketplace’s disclosure rules.
2. Screen the design for resemblance to existing logos, characters, or trademarks.
3. Consider a reverse image search before committing to a print run.

AI-generated printable

✓ REAL-WORLD SCENARIO ✓ LOWER CONCERN

THE SITUATION. You’re making a simple AI-assisted printable (e.g. a planner page) to sell as a digital download.

WHAT TO CHECK

- [ ] Platform terms
- [ ] Input rights
- [ ] Output rights
- [ ] Third-party rights
- [ ] Intended commercial use

WATCH OUT FOR

> Decorative AI elements should be checked for style-mimicry of a named artist.

> AI-generated template text should be reviewed for accidental overlap with another seller’s copy.

> If you used design-tool assets (e.g. Canva), that tool’s license applies too.

BEFORE YOU PUBLISH

1. Check your AI tool’s terms allow this use, and disclose AI in the listing description (Etsy requires this).
2. Show a real preview or excerpt of the pages in your listing images (Etsy requires this for digital downloads).
3. Save a terms snapshot for this product (Worksheet 2).

AI-generated social media graphics

✓ REAL-WORLD SCENARIO ✓ LOWER CONCERN

THE SITUATION. You’re using AI to create graphics and captions for your own brand’s social posts.

WHAT TO CHECK

- ☐ Platform terms
- ☐ Input rights
- ☐ Output rights
- ☐ Third-party rights
- ☐ Intended commercial use

WATCH OUT FOR

> Confirm no real person’s likeness appears without consent.

> Disclosure norms for AI content vary by platform, including restrictions on political or health content.

BEFORE YOU PUBLISH

1. Confirm no real individual’s face or likeness was generated without rights.
2. Check the AI platform’s usage policy for content-category restrictions.

AI-generated client work

! REAL-WORLD SCENARIO

! CHECK FIRST

THE SITUATION. You’re using AI to help produce a deliverable for a paying client.

WHAT TO CHECK

- [ ] Platform terms
- [ ] Input rights
- [ ] Output rights
- [ ] Third-party rights
- [ ] Intended commercial use

WATCH OUT FOR

> Client contracts may promise IP assignment you cannot fully guarantee if the output isn’t copyrightable.

> Clients may resell or relicense the deliverable further, increasing your exposure.

> Disclosing AI involvement may be a contractual or professional expectation.

BEFORE YOU PUBLISH

1. Review your contract’s IP-assignment language against what you can actually guarantee.
2. Disclose AI involvement to the client where relevant.
3. Keep verification records in case the client asks later.

AI-generated logo

REAL-WORLD SCENARIO

PROFESSIONAL REVIEW RECOMMENDED

THE SITUATION. You’re generating a logo with AI for a brand identity.

WHAT TO CHECK

- [ ] Platform terms
- [ ] Input rights
- [ ] Output rights
- [ ] Third-party rights
- [ ] Intended commercial use

WATCH OUT FOR

> Logos are exactly the case where copyright and trademark exclusivity matter most.

> AI-generated marks may be too close to existing registered trademarks.

> Purely AI-generated logo art may lack copyright protection; trademark rights depend on use and distinctiveness.

BEFORE YOU PUBLISH

1. Run a trademark clearance search before committing to the logo.
2. Have a human meaningfully modify and finalize the mark.
3. For a primary brand identity, consider professional trademark advice.

AI-generated book cover

! REAL-WORLD SCENARIO ! CHECK FIRST

THE SITUATION. You’re using an AI image as a commercial book cover.

WHAT TO CHECK

- [ ] Platform terms
- [ ] Input rights
- [ ] Output rights
- [ ] Third-party rights
- [ ] Intended commercial use

WATCH OUT FOR

> Genre-typical prompts referencing a famous illustrator by name raise style-mimicry concerns.

> AI-suggested cover typography may involve fonts with their own licensing terms.

BEFORE YOU PUBLISH

1. Confirm the platform permits this output type for commercial publication.
2. Avoid named-illustrator style prompts.
3. Verify any fonts used on the cover are properly licensed.

AI-written ebook

! REAL-WORLD SCENARIO ! CHECK FIRST

THE SITUATION. You’re using AI to draft most or all of an ebook’s text for sale.

WHAT TO CHECK

- [ ] Platform terms
- [ ] Input rights
- [ ] Output rights
- [ ] Third-party rights
- [ ] Intended commercial use

WATCH OUT FOR

> Purely AI-generated text may not be copyrightable, limiting your ability to stop copying.

> Factual claims generated by AI need independent verification.

> On Etsy, AI-generated instructional e-books that give directions for completing a task are not allowed (October 2026).

BEFORE YOU PUBLISH

1. Add substantial human editing, structure, and original material.
2. Fact-check AI-generated claims before publishing.
3. Check your platform’s AI rules. On Etsy, how-to instructions must be your own work; disclose AI use for other ebooks.

AI-written blog or article

✓ REAL-WORLD SCENARIO ✓ LOWER CONCERN

THE SITUATION. You’re publishing an AI-assisted article on your own site or as content marketing.

WHAT TO CHECK

- [ ] Platform terms
- [ ] Input rights
- [ ] Output rights
- [ ] Third-party rights
- [ ] Intended commercial use

WATCH OUT FOR

> Factual accuracy is your responsibility, not the AI provider’s.

> Some platforms and search engines have policies on undisclosed AI content.

> Feeding another site’s article into the prompt as a reference increases plagiarism risk.

BEFORE YOU PUBLISH

1. Fact-check before publishing.
2. Add your own original analysis and voice.
3. Check platform-specific AI-content disclosure norms.

AI-generated stock-style images

REAL-WORLD SCENARIO

HIGHER CONCERN

THE SITUATION. You're generating a batch of images intended to be resold as a reusable stock or asset library.

WHAT TO CHECK

- [ ] Platform terms
- [ ] Input rights
- [ ] Output rights
- [ ] Third-party rights
- [ ] Intended commercial use

WATCH OUT FOR

> Some AI tools' terms may limit reselling outputs as standalone assets. OpenAI's and Anthropic's consumer terms restrict reselling the Services, not Outputs.

> "Stock-style" prompts risk mimicking a real stock photographer's recognizable body of work.

> Buyers may assume exclusivity — but OpenAI notes other users may receive similar output.

BEFORE YOU PUBLISH

1. Check specifically whether the platform allows resale of outputs as standalone assets.
2. Avoid prompts referencing specific real photographers or stock agencies.
3. Write a clear buyer-facing rights statement (Worksheet 2).

AI image modified in Canva

! REAL-WORLD SCENARIO

! CHECK FIRST

THE SITUATION. You’re taking an AI-generated image and substantially editing or combining it in Canva or a similar tool before selling.

WHAT TO CHECK

- [ ] Platform terms
- [ ] Input rights
- [ ] Output rights
- [ ] Third-party rights
- [ ] Intended commercial use

WATCH OUT FOR

> Two sets of terms now apply: the AI tool’s and the design tool’s.

> The design tool’s own content-license rules (e.g. Free vs. Pro content) apply independently.

BEFORE YOU PUBLISH

1. Check both platforms’ terms, not just the AI tool’s.
2. Document what you changed or added during editing.
3. Treat the result as a combined-source asset, not a single-source one.

AI-generated print-on-demand products at scale

REAL-WORLD SCENARIO

HIGHER CONCERN

THE SITUATION. You’re running an ongoing POD storefront using AI-generated designs across many products.

WHAT TO CHECK

- [ ] Platform terms
- [ ] Input rights
- [ ] Output rights
- [ ] Third-party rights
- [ ] Intended commercial use

WATCH OUT FOR

> Volume increases both IP-resemblance risk and platform scrutiny.

> Etsy can remove non-compliant listings (fees still owed); repeat issues may affect your whole shop.

> Revenue-based ownership thresholds on some platforms may apply once you scale.

BEFORE YOU PUBLISH

1. Re-check your AI plan tier against any revenue thresholds as you scale.
2. Screen new designs on a rolling basis, not only at launch.
3. Keep a per-design log, including AI and production-partner disclosures (Worksheet 1).

Selling AI prompts

REAL-WORLD SCENARIO

NOT ALLOWED ON ETSY

THE SITUATION. You’re packaging and selling prompt text itself, rather than the AI-generated output, as a digital product.

WHAT TO CHECK

- [ ] Platform terms
- [ ] Input rights
- [ ] Output rights
- [ ] Third-party rights
- [ ] Intended commercial use

WATCH OUT FOR

> Claims about guaranteed output quality or results can create consumer-protection exposure.

> Etsy prohibits selling AI prompt bundles separately from the finished artwork (Etsy’s Stance on AI Creations, October 2026).

> Buyers may misunderstand what they are purchasing.

BEFORE YOU PUBLISH

1. Check each marketplace’s rules first — do not list AI prompt bundles on Etsy.
2. Make clear in your listing that you’re selling prompt text, not generated output.
3. Avoid named-living-artist styles and don’t guarantee specific results.

AI output resembling a famous character, person, or brand

REAL-WORLD SCENARIO

PROFESSIONAL REVIEW RECOMMENDED

THE SITUATION. An AI output turns out to resemble a celebrity, fictional character, or brand.

WHAT TO CHECK

- [ ] Platform terms
- [ ] Input rights
- [ ] Output rights
- [ ] Third-party rights
- [ ] Intended commercial use

WATCH OUT FOR

> This is one of the highest-risk categories regardless of the platform's general terms.

> Platform permission to use output commercially does not override third-party trademark, publicity, or character rights.

> Even unintentional resemblance can trigger a claim.

BEFORE YOU PUBLISH

1. Do not publish or sell the output as-is.
2. Regenerate or substantially alter the output to remove the resemblance.
3. Treat any borderline case as a stop-and-review situation (see Part 8).

AI output created using uploaded third-party material

REAL-WORLD SCENARIO

PROFESSIONAL REVIEW RECOMMENDED

THE SITUATION. You uploaded someone else’s image or content as a reference or input to generate the output.

WHAT TO CHECK

- [ ] Platform terms
- [ ] Input rights
- [ ] Output rights
- [ ] Third-party rights
- [ ] Intended commercial use

WATCH OUT FOR

> Output risk can come from your input, even when the output itself looks new.

> You generally need rights to whatever you upload, not just to what comes out.

> Confidential inputs may be used for training unless you opt out (Anthropic: even then, for Feedback or safety review).

BEFORE YOU PUBLISH

1. Confirm you had the right to upload the reference material in the first place.
2. If it was client or confidential material, check your confidentiality obligations and your account’s training settings first.
3. When in doubt about a third-party input, don’t commercialize the output until resolved.

AI commercial-use red flags

Any one of these means: slow down, check further, or get a second opinion before you sell.

- ✕ Celebrity or personality likeness appears in the output.
- ✕ Famous fictional characters appear, even unintentionally.
- ✕ Brand logos or trademarks appear in the output.
- ✕ You uploaded copyrighted images as reference material.
- ✕ You uploaded client-confidential material as input.
- ✕ You’re reselling raw outputs as reusable, standalone assets.
- ✕ You’re assuming a paid plan automatically means you own the copyright.
- ✕ You don’t know which AI generated the source material.
- ✕ The provider’s terms changed after you created the content.
- ✕ You’re listing without a required AI disclosure (e.g. Etsy’s listing-description rule).
- ✕ You’re listing AI prompt bundles on Etsy, or labelling AI work as handmade.
- ✕ You’re selling AI-written patterns, recipes or how-to instructions on Etsy.
- ✕ You haven’t read Etsy’s section 5 license (AI training) before uploading.

Before you sell checklist

Run this before every listing.

- [ ] I know which AI service created the output.
- [ ] I know which account or plan I used.
- [ ] I checked the provider’s current official terms.
- [ ] I reviewed everything used as input.
- [ ] I checked for relevant third-party rights.
- [ ] I checked the marketplace’s own rules and made any required AI and production-partner disclosures.
- [ ] I know what the marketplace’s terms let it do with my uploads (e.g. Etsy’s AI training license).
- [ ] I know exactly what the customer will receive.
- [ ] My listing images show a real preview of what the buyer receives.
- [ ] I ran my listing photos through the free Photo Check (link below).
- [ ] I considered trademark and likeness issues.
- [ ] I’m not presenting AI output as human-made.
- [ ] I saved evidence of the relevant terms.
- [ ] I recorded the verification date.
- [ ] I know when professional advice may be appropriate.

FREE TOOL

CheckMaybe Photo Check shows what a listing photo’s file reveals: camera data, editing apps, AI markers, Content Credentials and saved location. It runs in your browser; photos are never uploaded. checkmaybe-photo-check.pages.dev

AI content record worksheet

One record per project. Fill this in as you create, not after the fact.

PROJECT NAME	AI TOOL
PLAN	CREATION DATE
PROMPT (SUMMARY)	UPLOADED MATERIALS
OUTPUT TYPE	INTENDED USE
SALES PLATFORM / MARKETPLACE	DISCLOSURES MADE (AI / PRODUCTION PARTNER — WHERE)
COMMERCIAL USE TERMS CHECKED	OFFICIAL TERMS URL
VERIFICATION DATE	POTENTIAL THIRD-PARTY RIGHTS
NOTES	FINAL DECISION

Terms verification worksheet

Reusable for any AI provider or marketplace you check — keep one per platform per major terms update.

AI PROVIDER / MARKETPLACE

PRODUCT

PLAN

OFFICIAL TERMS URL

COMMERCIAL USE LANGUAGE

OUTPUT RIGHTS LANGUAGE

RESTRICTIONS

THIRD-PARTY RIGHTS WARNING

CHECKED ON

RECHECK REQUIRED BY

NOTES

Stop before you sell

These situations warrant additional verification — and often, a second opinion — before you publish or sell.

- ! **Famous people**
- ! **Brand names or logos**
- ! **Protected fictional characters**
- ! **Third-party artwork**
- ! **Client logos**
- ! **High-value commercial licensing**
- ! **Large-scale merchandising**
- ! **Reselling reusable assets**
- ! **Unclear source material**
- ! **Unclear ownership or rights**

STOP & VERIFY

When in doubt, don’t ship it yet.

Official sources & evidence hierarchy

Official terms and guidance first. Terms change: verify the current version.

OpenAI Terms of Use (US)
https://openai.com/policies/terms-of-use
Checked 25 September 2026 · Effective Jan 1, 2026; EEA/CH/UK terms differ

Adobe Generative AI User Guidelines
https://www.adobe.com/legal/licenses-terms/adobe-gen-ai-user-guidelines.html
Last reviewed September 2026 · Verify before relying

Midjourney Terms of Service
https://docs.midjourney.com/docs/terms-of-service
Last reviewed September 2026 · Verify before relying

Google Terms of Service
https://policies.google.com/terms
Last reviewed September 2026 · Pending full review

Anthropic Consumer Terms of Service
https://www.anthropic.com/legal/consumer-terms
Checked 25 September 2026 · Effective October 8, 2025

Etsy Seller Handbook: AI updates; Stance on AI Creations
https://www.etsy.com/seller-handbook/article/1522733284810
Checked 24 October 2026 · Oct 22, 2026; second article: …/article/1275449912004

Etsy — Listing Image Requirements
https://www.etsy.com/legal/policy/listing-image-requirements/253962679005
Checked 24 October 2026 · Last updated October 22, 2026

Etsy Terms of Use and Privacy Policies
https://www.etsy.com/legal
Checked 1 November 2026 · Terms effective Dec 16, 2026; privacy policies updated Oct 26, 2026

Etsy Creativity Standards (production partner disclosure)
https://www.etsy.com/legal/creativity
Checked 25 September 2026 · Last updated June 10, 2025

U.S. Copyright Office — Copyright and AI, Part 2: Copyrightability
https://www.copyright.gov
January 2025 report

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